

Court No. - 32

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Ashwani Kumar Mishra,J.

Sri S.S.A Kazmi, learned counsel, appearing for the Electricity Department will file counter affidavit or obtain instructions within a week.

List on 15.5.2015.

Order Date :- 7.5.2015

n.u.

(Ashwani Kumar Misra, J) (Tarun Agrawala, J)

Court No. - 32

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Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Put up this matter on 20.5.2015.

Counter affidavit may be filed by then.

Order Date :- 15.5.2015

SKS

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

From a perusal of the bill dated 25.2.2015, the petitioner was required to pay a sum of Rs.56,960/-, which the petitioner deposited, inspite of which a demand notice dated 30.3.2015 has been issued for a sum of Rs.3,69,896/-. Inspite of time being granted no counter affidavit has been filed.

Four weeks' further time is allowed to the respondents to file a counter affidavit.

List on 2.7.2015.

In the meanwhile no recovery shall be made from the petitioner till the next date of listing.

Order Date :- 20.5.2015

AKJ

(Amar Singh Chauhan,J.) (Tarun Agarwala,J.)

Court No. - 36

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Rajes Kumar,J.

Hon'ble Shamsher Bahadur Singh,J.

No counter affidavit has been filed on behalf of respondent.

List after three weeks. In the meanwhile, respondent may file counter affidavit.

Interim order shall continue till then.

Order Date :- 2.7.2015

MN/-

Court No. - 32

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Rakesh Tiwari,J.

Hon'ble Mukhtar Ahmad,J.

List after two weeks.

Interim order is extended till the next date of listing.

Order Date :- 27.7.2015

SFH

Court No. - 41

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

List after two weeks.

Interim order is extended till the next date of listing.

Order Date :- 22.2.2016

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Court No. - 34

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Adjournment has been sought by Sri Kamal Kumar Singh, learned counsel for petitioner, on the ground of illness.
2. Passed over.
3. List in the next cause list.

Order Date :- 7.12.2017

PS

Court No. - 34

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Sri K.K. Singh, learned counsel for petitioner, has sought adjournment on account of illness.
2. Passed over for the day.

Order Date :- 2.1.2018

AK

Court No. - 34

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Adjournment has been sought by Sri Kamal Kumar Singh, learned counsel for petitioner, on the ground of illness.
2. Passed over.
3. List in the next cause list.

Order Date :- 16.1.2018

PS

Court No. - 34

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad,S.S.A.Kazmi

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Sri K.K. Singh, learned counsel for petitioner, has sought adjournment on account of illness.
2. Passed over for the day.
3. Put up tomorrow.

Order Date :- 21.2.2018

AK

Court No. - 34

Case :- WRIT - C No. - 26191 of 2015

Petitioner :- Imran Ahmad

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C.,Mahboob
Ahmad,S.S.A.Kazmi

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Heard learned counsel for petitioner, learned Standing Counsel for State of U.P. and perused the record.
2. Dispute relates to electricity dues. It is not in dispute that against demand raised on the regular electricity bills issued to petitioner no objection was filed, amount was also not deposited. Hence recovery proceedings were initiated and demand notice under Section 3 of U.P. Government Electrical Undertakings (Recovery of Dues) Act, 1998 was issued by Executive Engineer concerned requiring petitioner to pay the amount by 30th March, 2015. This demand notice has been challenged in this writ petition.
3. In the present case no regular electricity bill is under challenge. We do not find any provision under which demand notice could have been challenged which is nothing but a consequential action informing the person concerned to make payment of electricity dues pursuant to regular electricity bills.
4. If petitioner has any grievance towards electricity dues, he has statutory alternative remedy before District Redressal Forum under Clause 5.12 of Electricity Supply Code, 2005.
5. Since petitioner has statutory alternative remedy, we find no reason to interfere in the matter.

6. Writ petition stands **dismissed** on the ground of alternative remedy.

Order Date :- 22.2.2018

A. Verma